

26SMCV00320 26SMCV00320

County: los-angeles

Division: Civil Law and Motion

Department: N

Hearing date: 2026-09-18

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SM%20%2CN%2C09%2F18%2F2026

Source SHA-256: 42ac78e78710f928cd5315ee428787cd673d8c4bb3730b79fbfdf4e4dcc759ca

Case Number: 26SMCV00320 Hearing Date: September 18, 2026 Dept: N

TENTATIVE RULING

Plaintiff Michael Lewis's Motion to Compel Initial Responses to First Set of Demands for Production of Documents is GRANTED. The Court orders Defendant to serve verified responses, without objections, within 10 days of service of the Court's order.

The Court also grants Plaintiff's request for monetary sanctions in the amount of \$1,071.76, to be paid by Defendant within 30 days of service of the Court's order.

Plaintiff to give notice.

REASONING

According to Plaintiff, on May 8, 2026, Defendant Global was served with Demand for Production of Documents (Set One). Plaintiff states that he never received responses, objections, or requests for an extension. Thus, Plaintiff filed the instant motion to compel Defendant's responses to the discovery request. Plaintiff also requests monetary sanctions in the amount of \$1,071.76 against Defendant: \$1,000 under Code of Civil Procedure section 2023.050, subdivision (a), \$60 for motion filing fees, and \$11.76 for electronic filing fees.

In opposition, Defendant states that it has fully responded to the Demand for Production of Documents.

In its reply, Plaintiff does not dispute that responses have been served. However, Plaintiff requests that the Court order all objections to be waived and order Defendant to serve verified responses, without objections, and produce all responsive documents, within 10 days, given that the responses were not timely. Plaintiff also requests sanctions in the amount of \$1,000 pursuant to Code of Civil Procedure section 2023.050, subdivision (a), plus \$71.76 in filing and electronic-filing fees, to be paid by Defendant within 30 days of the Court's order.

A party must respond to requests for production of documents within 30 days after service. (Code Civ. Proc., §2031.260, subd. (a).) If a party to whom requests for production of documents is directed does not provide timely responses, the requesting party may move for an order compelling response to the discovery. (Code Civ. Proc., §2031.300, subd. (b).) The responding party also waives the right to make any objections, including ones based on privilege or work-product protection. (Code Civ. Proc., §2031.300, subd. (a).) There is no time limit for a motion to compel responses to production of documents other than the cut-off on hearing discovery motions 15 days before trial. (Code Civ. Proc., §§2024.020, subd. (a), 2031.300.) No meet and confer efforts are required before filing a motion to compel responses to the discovery. (Code Civ. Proc., §

2031.300; Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 411.)

Code of Civil Procedure, section 2023.030, subdivision (a) provides, in pertinent part, that the court may impose a monetary sanction on a party engaging in the misuse of the discovery process to pay the reasonable expenses, including attorney's fees, incurred by anyone because of that conduct. Misuse of discovery includes "failing to respond or submit to an authorized method of discovery." (Code Civ. Proc., §2023.010, subd. (d)). Furthermore, pursuant to section 2031.300, subdivision (c), the court shall impose monetary sanctions "against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." Finally, the court shall impose a \$1,000 sanction if the court finds that "[t]he party, person, or attorney did not respond in good faith to a request for production of documents," produced the requested documents within seven days before the hearing on the motion to compel production of documents, or failed to confer in a reasonable and good faith attempt to informally resolve the dispute. (Code Civ. Proc., §2023.050, subd. (a).)

Having reviewed the moving papers, Opposition, and Reply, the Court makes the following findings. Although Defendant served responses to the discovery request, given that these responses were untimely, Defendant has waived all objections and has not sought relief from the waiver. The service of an untimely response does not divest the trial court of its authority to hear and grant a motion to compel responses. (Sinaiko, 148 Cal.App.4th at 405.) Accordingly, the Court orders Defendant to serve verified responses, without objections within 10 days of service of the Court's order.

The Court also finds that monetary sanctions are mandatory because Defendant unsuccessfully opposed the motion and has not shown substantial justification or other circumstances making imposition of sanctions unjust.

For the foregoing reasons, Plaintiff Michael Lewis's Motion to Compel Initial Responses to First Set of Demands for Production of Documents is GRANTED. The Court orders Defendant to serve verified responses, without objections, within 10 days of service of the Court's order.

The Court also grants Plaintiff's request for monetary sanctions in the amount of \$1,071.76, to be paid by Defendant within 30 days of service of the Court's order.